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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

16, 2026

CASE NUMBER

24SMCV03971

MOTION

Strike

Portions of Arya Chalon, LLC's Cross-Complaint

MOVING PARTY

Defendant

and Cross-Defendant Ronald Beckenfeld

OPPOSING PARTY

Defendant
and Cross-Complainant Arya Chalon, LLC

MOTION

This case arises from a dispute between a property owner and LADWP over water intrusion allegedly caused by a public project.

The operative Third Amended Complaint (“TAC”) brought by Plaintiff BSE IKG LLC (“Plaintiff”) against Defendants Arya Chalon, LLC (“Arya”); Ardeshir “Ardie” Tavangarian (“Tavangarian”); Ronald Mark Beckenfeld, as trustee of the Ronald Mark Beckenfeld Living Trust U/D/T May 18, 2022 (“Beckenfeld”); City of Los Angeles Department of Water and Power (“LADWP”); Norman Reiss, as a trustee of the Reiss Family Trust dated May 12, 2006 (“Norman”); and Jennifer L. Reiss, as a trustee of the Reiss Family Trust dated May 12, 2006 (“Jennifer”) (together, “Defendants”) alleges seven causes of action as follows:

1.
Inverse Condemnation against LADWP
2.
Dangerous Condition of Public Property against LADWP
3.
Nuisance against LADWP
4.
Trespass against LADWP
5.
Negligence against the Somera-Chantilly Defendants
6.
Nuisance against the Somera-Chantilly Defendants
7.
Trespass against the Somera-Chantilly Defendants

Plaintiff owns real property on Chantilly Road; Arya, which is controlled by Tavangarian, owns various properties on Somera Road, upslope of

Plaintiff's property; Beckenfeld owns a property on Somera road upslope of and adjacent to Plaintiff's property; and the Reiss Defendants own a property located on Chantilly Road next to Plaintiff's property.

On July 2, 2026, Arya cross-complained against Plaintiff, Norman, Jennifer, and Beckenfeld, alleging three causes of action for (1) nuisance; (2) trespass; and (3) negligence.

Beckenfeld now moves to strike the punitive damages allegations from Arya's Cross-Complaint. Arya opposes the motion.

ANALYSIS

1.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) "Oppression" means

despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3),
emphasis added.)

Further, a plaintiff must

assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To

wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.)

"When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate notice of the kind of conduct charged against him." (G. D. Searle & Co.

v. Superior Court (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In *Anschutz Entertainment Group, Inc. v.*

Snepp, the Court of Appeal noted that the plaintiffs' assertions related to their claim for punitive damages were "insufficient to meet the specific pleading requirement." (*Anschutz*

Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643

[plaintiffs alleged "the conduct of Defendants was intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff's rights. Plaintiff's injuries were exacerbated by the malicious conduct of Defendants. Defendants' conduct justifies an award of exemplary and punitive damages"]; see also *Grieves*

v. Superior Court (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be

circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim”].)

As to Beckenfeld, Cross-Complainant alleges:

3. [A]t

all times relevant herein, Beckenfeld was the owner of the real property located at 962 Somera Road, Los Angeles, California 90077 (the “Beckenfeld Property”). . . .

11. The

Arya Properties neighbor the Beckenfeld Property, which is adjacent to the Arya Properties. The Beckenfeld Property is located within a designated Grading Area as established by the City of Los Angeles. Grading and earthwork within a designated Grading Area require permits from the City of Los Angeles Department of Building and Safety.

14. All

of the properties referenced herein exist upon a hillside and are on or adjacent to an ancient landslide.

15. In

or about May 2024, a landslide within the ancient landslide activated, damaging the Arya Properties, including because the property and earth surrounding the Arya Properties has subsided, exposing and damaging the subterranean and stabilizing structures at the Arya Properties as well as other aspects of the Arya Properties, and because earth and other debris has invaded the Arya Properties.

16.

Cross-Complainant is informed and believes and based thereon alleges that prior to May 2024, Beckenfeld caused unpermitted changes to be made to the rear yard of the Beckenfeld Property, including the construction of retaining walls creating terraces, a faux pond and stream, a putting green, a greenhouse, and other unpermitted improvements. Moreover, Beckenfeld caused unpermitted grading to be performed at the Beckenfeld Property in conjunction with construction of the rear yard improvements. This grading was performed within a designated Grading Area without the required permits from the City of Los Angeles. Further and pursuant to improvements caused by Beckenfeld, storm water from the roof

and lower pads at the Beckenfeld Property was conducted to three approximately 1,750-gallon above-grade storm water collection tanks on a level pad east of and below the southeast corner of the residence. Overflow from those tanks flowed into a below-grade vault with sump pumps, and water was pumped to Somera Road via subsurface pipes. That storm water collection and management system was located within what is now the active landslide. Upon information and belief, the pipe system leading to and from the collection tanks and sump vault at 962 Somera Road was compromised and leaking prior to the May 2024 landslide, thereby contributing to the saturation of soils and the activation of the ancient landslide. Beckenfeld also performed other earthwork and work affecting the hillside. The earthwork and other improvements caused by Beckenfeld contributed to the May 2024 landslide.

20.

Following the May 2024 landslide and the initiation of this action, Beckenfeld performed new activities in May of 2026 and caused grading and substantial earth movement to be undertaken at the Beckenfeld Property, including grading, export of dirt, demolition work, and the moving of truckloads of boulders. This work was performed after any previously issued permits had expired and without obtaining new permits required for work within the designated Grading Area. Accordingly, Beckenfeld has caused conditions at the head of the active landslide to be altered without geotechnical input or required permits from the City of Los Angeles Department of Building and Safety or any other governmental authority.

21.

Beckenfeld also caused to be moved and removed his previously installed unpermitted improvements and water storage tanks, and the grade at the Beckenfeld Property is being further altered without permits or geotechnical oversight. Such actions constitute an effort to hide and obscure evidence related to the May 2024 landslide. Such actions also contribute to the instability of the hillside.

22.

Cross-Complainant is informed and believes and based thereon alleges that Beckenfeld has also caused the former storm water collection system at 962 Somera Road to be dismantled without replacement. It is imperative that an operational storm water collection and management system be established at 962 Somera Road before the next rain event to prevent further damage to the Arya Properties and other neighboring properties.

23. On

or about June 4, 2026, Cross-Complainant's counsel sent a demand letter to Beckenfeld's counsel demanding immediate cessation of all unpermitted grading and earthwork at the Beckenfeld Property and preservation of all evidence relevant to the condition of the hillside and the cause and extent of the ongoing landslide. Despite receiving notice of the dangerous conditions through the June 4, 2026 demand letter as well as by the May 2024 landslide and the initiation of this action, among other things Beckenfeld has caused unpermitted grading and earth movement to continue at the Beckenfeld Property, including the moving of truckloads of boulders within the designated Grading Area without the required permits or geotechnical oversight. The ongoing unpermitted grading and earthwork that Beckenfeld has caused to be undertaken at the head of the active landslide threatens to cause further landslide movement and damage to the Arya Properties.

24.

Beckenfeld knew or should have known that causing unpermitted grading and substantial earth movement to be undertaken at the head of an active landslide, within a designated Grading Area, without geotechnical oversight or required permits, would endanger neighboring properties including the Arya Properties. Beckenfeld was placed on notice of the dangerous consequences of continued unpermitted work after the May 2024 landslide and the filing of this action and the letter from Cross-Complainant's counsel, and yet persisted in his dangerous actions. The geological conditions at the Arya Properties have degraded because of Beckenfeld's continued dangerous actions.

25.

Beckenfeld's conduct as alleged herein was despicable, and willful, oppressive, and malicious within the meaning of California Civil Code Section 3294.

26.

Beckenfeld acted with a willful and conscious disregard of the rights and safety of Cross-Complainant and other neighboring property owners. His decision to cause substantial grading and earth movement to be performed—including moving truckloads of boulders—within a designated Grading Area at the head of an active landslide, without permits or geotechnical oversight, and in defiance of demands to cease such activity and after notice of the harmful effects of his conduct, constitutes malice and oppression under California Civil Code Section 3294. Beckenfeld was and is aware of the probable dangerous

consequences of his conduct and has deliberately failed to avoid those consequences.

27.

Cross-Complainant is therefore entitled to an award of punitive damages in an amount sufficient to punish Beckenfeld and deter similar conduct in the future.

28.

Moreover, Beckenfeld's wrongful conduct, unless and until enjoined and restrained by order of this Court, will cause great and irreparable injury to Cross-Complainant by depriving Cross-Complainant of the full use and enjoyment of the Arya Properties.

29.

Cross-Complainant has no adequate remedy at law for the injuries caused by Beckenfeld's wrongful acts in that, among other things, monetary compensation would not adequately compensate Cross-Complaint for being deprived of the use and enjoyment of the Arya Properties, as set forth above. Accordingly, Cross-Complainant is entitled to injunctive relief compelling Beckenfeld to cease all unpermitted grading and earthwork at the Beckenfeld Property.

(Cross-Complaint at ¶¶ 3, 11, 14-16, 20-29.)

As

the Court previously explained, allegations made "on information and belief" are generally insufficient to satisfy heightened pleading requirements "unless the facts upon which the belief is founded are stated in the pleading." (*Dowling v. Spring Valley. Water Co.* (1917) 174 Cal.218, 221.)

Here, Arya does not indicate the basis for the belief that the work done to the Beckenfeld property was unpermitted and lacking geotechnical oversight, nor does Arya allege who, what, when, or how this construction work was done.

Further, Arya does not allege the basis for Arya's allegation that Beckenfeld knew or should have known the construction work was destabilizing the common hillside prior to the May 2024 landslide that caused Arya's damages.

Therefore, Arya has not alleged oppression, fraud, or malice with requisite specificity to support a claim for

punitive damages against Beckenfeld.

2. LEAVE TO AMEND

A plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that “if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend.” (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, because

Arya does not specify the specific facts Arya intends to add to the cross-complaint to cure the deficiencies above, the Court denies Arya’s request for leave to amend.

CONCLUSION AND ORDER

For the reasons stated, the Court grants Beckenfeld’s motion to strike without leave to amend and without prejudice.

Further, the Court orders Beckenfeld to file and serve an Answer to the Cross-Complaint on or before September 28, 2026.

Further, the Court will enter the proposed Order lodged on August 10, 2026 in conformity with the ruling.

Beckenfeld shall provide notice of the Court’s ruling/Order, and file the notice with a proof of service forthwith.

DATED: September 16, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court